

NOTICE OF SALE

SUPREME COURT COUNTY OF QUEENS, MASTR ALTERNATIVE LOAN TRUST 2005-1, MORTGAGE PASS THROUGH CERTIFICATES, SERIES 2005-1, U.S. BANK NATIONAL ASSOCIATION, AS TRUSTEE, Plaintiff, vs. ANTHONY A. NISBETT A/K/A ANTHONY NISBETT, ET AL., Defendant (s).

Pursuant to a Judgment of Foreclosure and Sale duly entered on November 25, 2024 I, the undersigned Referee will sell at public auction on the second floor in Courtroom 25 Queens County Supreme Courthouse located at 88-11 Sutphin Boulevard, Jamaica, NY 11435, on June 26, 2026 at 11:00 AM, premises known as 307 BEACH 46TH STREET, FAR ROCKAWAY, NY 11691. All that certain plot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the Borough and County of Queens, City and State of New York, Block: 15838, Lot: 63. Approximate amount of judgment is \$196,214.72 plus interest and costs. Premises will be sold subject to provisions of filed Judgment Index # 712054/2023.

If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the deposit paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee, the Mortgagee's attorney, or the Referee.

All parties shall comply with the Queens County Foreclosure Auction Rules, which can be found on the Queens Supreme Court - Civil Term Website

(https://www.nycourts.gov/LegacyPDFS/COURTS/11jd/supreme/civilterm/patrules/Foreclosure_Auction_Rules.pdf)

WILLIAM LOUIS SENA. Esq., Referee

Halliday, Watkins & Mann. P.C., 6851 Jericho Turnpike, Suite 185, Syosset, New York 11791,
Attorneys for Plaintiff

ADVANTAGE FORECLOSURE SERVICES, INC.

Title No. [REDACTED] (File No. Nisbett)

**SCHEDULE A
DESCRIPTION****Block 15838 and Lot 63**

ALL that certain plot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the Borough and County of Queens, City and State of New York, bounded and described as follows:

BEGINNING at a point on the Westerly side of Beach 46th Street, distant 52.47 feet Northerly from the corner formed by the intersection of the Westerly side of Beach 46 Street, 40 feet wide with the Northerly side of Rockaway Beach Boulevard (75 feet wide);

RUNNING THENCE Westerly at right angles to the Westerly side of Beach 46th Street, 95.10 feet;

THENCE Northerly parallel with Beach 46th Street, 48.50 feet;

THENCE Northerly at right angles to Beach 46th Street, 95.10 feet to the Westerly side of Beach 46th Street;

THENCE Southerly along the Westerly side of Beach 46th Street, 48.50 feet to the point or place of BEGINNING.

EXCEPTING the following portion of the premises that was acquired by the City of New York pursuant to Condemnation Order recorded in CRFN 2012000337095.

COMMENCING at a point formed by the intersection of the Southerly line of Beach Channel Drive (75 feet wide) and the Westerly line of Beach 46th Street (50 feet wide) as said streets are shown on the Alternation Map No. 4929 and on Acquisition and Damage Map No. 5856, dated July 31, 2009 and running thence Southerly along the Westerly line of Beach 46th Street, a distance of 565.00 feet to the point and place of beginning.

RUNNING THENCE Easterly along the division line of Tax Lots 61 and 63, and deflecting to the left 90 degrees 00 minutes 00 seconds from the Westerly line of Beach 46th Street, a distance of 5.00 feet to a point;

THENCE Southerly along the Easterly line of said Tax Lot 63 and deflecting to the right 90 degrees 00 minutes 00 seconds from the last mentioned course, a distance of 48.50 feet to a point;

THENCE Westerly along the division line of said Tax Lots 63 and 67 and deflecting to the right 90 degrees 00 minutes 00 seconds from the last mentioned course, a distance of 5.00 feet to a point;

THENCE Northerly through the lands of said Tax Lot 63 and along the Westerly street line of Beach 46th Street and deflecting to the right 90 degrees 00 minutes 00 seconds from the last mentioned course, a distance of 48.50 feet to the point and place of BEGINNING.

Premises known as 307 Beach 46th Street, Far Rockaway, New York 11691

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

.....X

MASTR ALTERNATIVE LOAN TRUST 2005-1,
MORTGAGE PASS THROUGH CERTIFICATES, SERIES
2005-1, U.S. BANK NATIONAL ASSOCIATION, AS
TRUSTEE

Index No.: 712054/2023

Plaintiff(s),

-against-

ANTHONY A. NISBETT A/K/A ANTHONY NISBETT, ET
AL.

AFFIDAVIT OF SERVICE

Defendant(s).

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STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

Rina Yamamoto, being duly sworn, deposes and says:

I am over 18 years of age, reside in the State of New York and I am not a party to this action.

On May 28, 2026, I enclosed a copy of the annexed **NOTICE OF SALE** by depositing a true copy of same enclosed in a postpaid properly addressed wrapper, in an official depository under the exclusive care and custody of the United States Postal Service within the State of New York to the following parties:

ANTHONY A. NISBETT A/K/A ANTHONY NISBETT
2897 FABER TERRACE
FAR ROCKAWAY, NY 11691

ANTHONY A. NISBETT A/K/A ANTHONY NISBETT
307 BEACH 46TH ST
FAR ROCKAWAY, NY 11691

MARY COLEMAN NISBETT A/K/A MARY S. NISBETT
2897 FABER TERRACE
FAR ROCKAWAY, NY 11691

MARY COLEMAN NISBETT A/K/A MARY S. NISBETT
307 BEACH 46TH ST
FAR ROCKAWAY, NY 11691

NEW YORK CITY PARKING VIOLATIONS BUREAU
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY TRANSIT ADJUDICATION BUREAU
130 LIVINGSTON STREET
BROOKLYN, NY 11201

LORETTA NISBETT
307 BEACH 46TH ST, 1st Floor
FAR ROCKAWAY, NY 11691

ADAM HUGHES, ESQ.
MALEN & ASSOCIATES, P.C.
ATTORNEY FOR DEFENDANT
CAPITAL ONE BANK (USA), N.A.
123 FROST STREET, SUITE 203
WESTBURY, NY 11590

BERNARD J TORDESILLAS, ESQ.
ATTORNEY FOR CITY OF NEW YORK (DEPARTMENT OF FINANCE) S/H/A NEW
YORK CITY ENVIRONMENTAL CONTROL BOARD
375 PEARL STREET – 30TH FLOOR
NEW YORK, NY 10038

QUEENS COUNTY SUPREME COURT
AUCTION CALENDAR CLERK
88-11 SUTPHIN BLVD
JAMAICA, NY 11435

WILLIAM L. SENA, ESQ.
REFEREE
3732 75TH STREET
JACKSON HEIGHTS, NY 11372-6406

ANY AND ALL OCCUPANTS
307 BEACH 46TH ST
FAR ROCKAWAY, NY 11691


Rina Yamamoto

Sworn to before me on this 28th day

of May, 2026


NOTARY PUBLIC

